

STANDING ORDER NO. 363 /2009

MENACE OF NOISE POLLUTION.

1. The Hon'ble Supreme Court of India has taken a serious view of noise pollution in Delhi caused by generator sets, loud speakers, crackers etc.
2. A large number of circulars / instructions have been issued from time to time for effective action against the menace of loud speakers, fire crackers, and generator sets causing disturbance to peace and tranquility of citizens, in the name of celebrations like marriages, religious processions and rallies/demonstrations etc.
3. As per schedule of the Noise Pollution (Regulation and Control) Rules, 2000, ambient air quality, permissible standards of noise is as under:-

Category of Area/Zone	Limits in dB(A) Leq.	
	Day Time (6 AM to 10 PM)	Night Time (10 PM to 6 AM)
Industrial Area	75	70
Commercial Area	65	55
Residential Area	55	45
Silence Zone	50	40

4. The Environment (Protection) Act, 1980 (29 of 1986) covers various aspects for the protection and improvement of environment and checking of noise pollution. To this effect Noise Level Meters were purchased during the year 2002 and distributed to all ACsP. They were also imparted training in operating the Noise Level Meters. The ACsP of Sub-Divisions have been empowered to initiate action *suo motu* or on a complaint/information on noise pollution causing annoyance, disturbance, discomfort etc. Besides, the orders of Hon'ble L.G. Delhi dated 05.12.2001 regarding banning the use of generator sets of capacity of 5 KVA and above in the residential areas between 10 PM to 6 AM should also be implemented meticulously.
5. The Hon'ble Supreme Court of India in Writ Petition (Civil) No. 72/1998 (PIL) has issued certain directions with regard to noise pollution by fire crackers, loudspeakers, vehicle noise etc. The details of directions contained in judgment dated 18.07.2005 are as under:-

I. Firecrackers:

1. On a comparison of the two systems, i.e. the present system of evaluating firecrackers on the basis of noise levels, and the other where the firecrackers are evaluated on the basis of chemical composition, it is felt that the latter method is more practical and workable in Indian circumstances. It shall be followed unless and until replaced by a better system.

2. The Department of Explosive (DOE) may undertake necessary research activity for the purpose and come out with the chemical formulae for each type or category or class of firecrackers. The DOE may specify the proportion/composition as well as the maximum permissible weight of every chemical used in manufacturing firecrackers.
3. The Department of Explosives may divide the firecrackers into two categories- (i) sound emitting firecrackers, and (ii) colour/light emitting firecrackers.
4. There shall be a complete ban on bursting sound emitting firecrackers between 10 pm and 6 am. It is not necessary to impose restrictions on the time of bursting of colour/light emitting firecrackers.
5. Every manufacturer shall on the box of each fire cracker mentions details of its chemical contents and that it satisfies the requirement as laid down by DOE. In case of failure on the part of the manufacturer to mention the details or in cases where the contents of the box do not match the chemical formulae as stated on the box, the manufacturer may be held liable.
6. Firecrackers for the purpose of export may be manufactured bearing higher noise levels subject to the following conditions.: (i) The manufacturer should be permitted to do so only when he has an export order with him and not otherwise; (ii) The noise levels for these firecrackers should conform to the noise standards prescribed in the country to which they are intended to be exported as per the export order; (iii) These firecrackers should have a different colour packing, from those intended to be sold in India: (iv) They must carry a declaration printed thereon something like "not for sale in India" or "only" for export to country AB' and so on.

II. Loudspeakers:

1. The noise level at the boundary of the public place, where loudspeaker or a public address system or any other noise source is being used shall not exceed 10 dB (A).
2. No one shall beat a drum or tom-tom or blow a trumpet or beat or sound any instrument or use any sound amplifier at night (between 10.00 pm and 6.00 am) except in public emergencies.
3. The peripheral noise level of privately owned sound shall not exceed by more than 5 dB(A) than the ambient air quality standard specified for the area in which it is used, at the boundary of the private place.
4. According to Regulation No. 3 of the 'Union Territory of Delhi Loudspeakers (Licensing and Controlling) Regulations, 1980, no person shall use, or permit loudspeakers in any public place or within a distance of 200 meters from any public place or in any place of public entertainment

except under and in accordance with the conditions of licence granted by the Commissioner of Police, Delhi or by any officer authorized by him on his behalf. No permission for playing of loudspeakers between 10.00 PM to 6.00 AM should be issued by the districts under any circumstances. Permission to use loudspeakers may be given under these regulations. This pertains not only to the loudspeakers, but also through other sources such as firecrackers, heavy-machinery, percussion instruments etc.

The Commissioner of Police, Delhi, vide his order No. 11686-766/C&T(AC-IV)/PHQ, dated 09.04.09 (Annexure-I), has authorized following police officers to take action where violation of these regulations comes to notice in the National Capital Territory of Delhi:-

- i) All Deputy Commissioners of Police of Districts, PCR, Railways and IGI Airport.
- ii) All Assistant Commissioners of Police of a Sub-Division (SDPOs) in the Districts, Railways and IGI Airport.

A copy of the UT of Delhi Loud-speakers (Licensing & Controlling) Regulations, 1980 is at Annexure-II.

III. Vehicle Noise:

No horn should be allowed to be used at night (between 10 pm and 6 am) in residential area except in exceptional circumstances.

IV. Generator Sets:

The use of generator sets is causing air/noise pollution. The Hon'ble Supreme Court of India has taken a serious view of noise pollution in Delhi due to the use of generator sets. The Hon'ble L.G. Delhi's order dated 05.12.2001 regarding banning of operation of generator sets of capacity of 5 KVA & above in the residential area between 10.00 P.M. to 6.00 A.M should also be strictly implemented.

V. Awareness:

1. There is a need for creating general awareness about the hazardous effects of noise pollution. Suitable chapters may be added in the text-books which teach civic sense to the children and youth at the initial/early level of education. Special talks and lectures be organized in the schools to highlight the menace of noise pollution and the role of the children and younger generation in preventing it. Police and civil administration should be trained to understand the various methods to curb the problem and also the laws on the subject.

2. The State must play an active role in this process. Resident Welfare Associations, Service Clubs and Societies engaged in preventing noise pollution as a part of their projects need to be encouraged and actively involved by the local administration.
3. Special public awareness campaigns in anticipation of festivals, events and ceremonial occasions where firecrackers are likely to be used, need to be carried out.

The above said guidelines are issued in the exercise of powers conferred on this Court under Articles 141 and 142 of the Constitution of India. These would remain in force until modified by this Court or superseded by an appropriate legislation.

VI. General Instructions

1. The State shall make provision for seizure and confiscation of loud-speakers, amplifiers and such other equipments as are found to be creating noise beyond the permissible limits.
2. Rule 3 of the Noise Pollution (Regulation and Control) Rules, 2000 makes provision for specifying ambient air quality standards in respect of noise for different areas/zones, categorization of the areas for the purpose of implementation of noise standards, authorizing the authorities for enforcement and achievement of laid down standards. The Central Government/State Government shall take steps for laying down such standards and notifying the authorities where it has already not been done.
3. Rule 8 of the Noise Pollution (Regulation and Control) Rules, 2000 authorizes the 'authority' to take action on a report of an officer incharge of a police station or information received otherwise by him to prevent annoyance, disturbance, discomfort, etc. Such annoyance, disturbance, etc. could arise from vocal or instrumental music, noise coming out of loudspeakers, public address system, or even due to anyone carrying on trade, avocation, operation, etc. or due to burning of crackers, use of firearms, use of generator or heavy machinery, continuous use of pressure horns in vehicles, use of percussion and other musical instruments etc. resulting in noise.
4. Notwithstanding any thing contained in sub-rule (2) the State Government may, subject to such terms and conditions as are necessary to reduce noise pollution, permit use of loud speakers or public address systems during night hours (between 10.00 p.m. to 12.00 midnight) on or during any cultural or religious festive occasion for a limited duration not exceeding fifteen days in all during a calendar year.

5. All tent/loudspeaker/generator suppliers should be issued clear cut instructions not to supply such equipments to the users without written permission of the local police. District DCsP should ensure that suppliers have supplied the said equipments with written permission of the local police failing which legal action should be taken against them. District DCsP should further write to the local, civic authorities, B.S.E.S Rajdhani Power Ltd., B.S.E.S Yamuna Power Ltd. and N.D.P.L to obtain police clearance before pitching tents/supplying loudspeakers and giving electricity connections etc. for public and private functions. All Resident Welfare Associations and Market Associations should be sensitized about noise pollution and the legal action which can be taken by the Delhi Police.

VII. Supersession Clause

With the issue of this revised SO, the earlier SO No. 363/09 issued vide No. 1751-1900/HAR/PHQ dated 27.1.09 is hereby superseded.



(Yudhbir Singh Dadwal)
Commissioner of Police,
Delhi.

O.B. No. 30/09/RB/PHQ dated 20-4-09

No. 4901-5050/HAR/PHQ (AC-) dated Delhi, the 20-4-2009

ORDER

Whereas I, the Commissioner of Police, Union Territory of Delhi am satisfied that is necessary to do so.

Now, therefore, in exercise of the powers conferred by sub-section (d) of Section (2) of Union Territory of Delhi Loud-Speakers (Licensing & Controlling) Regulations, 1980, I, Yudhbir Singh Dadwal, Commissioner of Police, Delhi am pleased to authorise all District DCsP including DCsP/IGI Airport & Railways and all SDPOs of the National Capital Territory of Delhi including those of IGI Airport & Railways to exercise and perform all such powers mentioned in these Regulations. This order supersedes any previous order in this regard issued by the Commissioner of Police, Delhi.

Copy of notification dated 23rd June 1980 of these Regulations is attached herewith.



(Yudhbir Singh Dadwal)
Commissioner of Police,
Delhi.

No.11686-766/C&T/PHQ dated, New Delhi dated 09.04.2009

NOTIFICATION

Delhi, the 23rd June, 1980

No. 1518/Spl. Cell/PHQ-Whereas the undersigned considers it expedient that regulations should be framed for licensing and controlling loud-speakers in the Union Territory of Delhi.

And where as the undersigned is satisfied that circumstances exist which render it necessary that such regulations should be brought into force at once.

Now. Therefore, the undersigned with the previous sanction of the Administrator of the Union Territory of Delhi and in exercise of powers conferred by sub-clause (iii) of Clause (S) of section 28 (I) read with sub-section (2) & (3) of section 28 of the Delhi Police Act. 1978 is pleased to make the following regulations namely:-

1. **Short title, extent and application:-** These regulations may be called the Union Territory of Delhi Loud-Speakers (Licensing and Controlling) Regulation 1980.

2 They shall extend to the Union Territory of Dehi.

3 These regulations shall come into force from the date of their publication in Delhi Gazette.

2. **Definitions** - In these regulations unless the context requires otherwise:-

(a) "Commissioner" means The Commissioner of Police Union Territory of Delhi.

(b) "Licence" means a Licence granted under these regulations for using the Loud Speakers in the Union-Territory of Delhi.

(c) "Licence" means of persons who has been granted a licence under these regulations.

(d) "Licensing Authroity means the Commissioner of Police or any other officer as may be authorised by him.

3. No person shall use, operate or permit the use or operation of a loud-speaker in any Public place or within a distance of 200 metres from any public place or in any place of Public entertainment, except under and in accordance with the conditions of a licence granted by the Commissioner of Police, Delhi or by any officer authorized by him in that authorized by him in that behalf.

4. No Loud Speaker shall be used or operated or permitted to be used or operated from a moving vehicle for any purpose except with the permission of the Commissioner of Police, Delhi, or any other officer authorized by him in that behalf.

5. No Loud-speaker shall be installed or operated from a position which overlooks a public road, except with the previous permission of the Commissioner of Police, Delhi, or any other officer so authorized.
6. (I) No licence for the use of Loud-speaker from stationery vehicle will be granted unless :-
 - (a) a list of public places where the vehicle carrying a Loud-speaker is intended to be stationed along with the date and time of its use, is furnished to the Licensing Authority alongwith the application for the licence.
 - (b) the Licensing Authority is satisfied that no obstruction is likely to be caused to traffic by the use of Loud-speaker from the vehicle.
- (2) The Licence under sub-section (I) shall always be subject to the condition that if in order to remove congestion on roads, maintain order or prevent commission of a nuisance, any Police Officer thinks it necessary that the vehicle from which a Loud-speaker is use should be shifted to some other place, he shall have the right to direct the Licensee to shift the vehicle and ensure it compliance.
7. No Loud-speaker shall be used or operated or permitted to be used or operated by any person holding licence in such manner as to disturb or cause annoyance to any other person residing in or carrying on business in any building or premises adjoining the public place or place of public entertainment.
8. Any Police Officer above the rank of Constale having jurisdiction in the area shall have free access to the Place of Public entertainment, where a Loud-speaker is being used, to satisfy himself that the conditions of its licence are not violated.
9. The Commissioner of Police, Delhi or any officer authorised under regulation 3 may cancel the licence issued under regulation 3 if the holder of such licence contravence any of the above regulations or the conditions subject to which the licence is issued.
10. The foregoing regulations shall not be deemed to prevent the Commissioner of Police, Delhi or subject to his orders any Police Officer from giving as occasion may require any special directions or order under section 29 or from issuing any notification under sub-section (1) of section 30 or any order under sub-section (I) of Section 32 of the Delhi Police Act, 1978.
11. Nowithstanding anything contained in these regulations or in the provisions of any licence thereunder, the Commisisoner of Police, Delhi or any other officer authorised by him may be order prohibit the use by the licenses of any or all Loud-speakers in any place for such period as he may deem fit, in order to prevent obstruction, inconvenience, annoyance, risk, danger or danger the residents or passengers in the vicinity.

12. Necessary register regarding grant of permission must be maintained with the following columns and staff detailed for patrolling be advised to keep necessary watch accordingly to avoid misuse of such permission :-

Sl. No.	Date	Time of permission accorded	Name/address of the owner of loudspeaker

13. While granting permission to use Loud-speaker, a condition shall be imposed that the Loud-speaker, will be played at a minimum volume audible to the persons for whom it is meant i.e. immediate congregation.

(Sd.)

P.S. BHINDER
COMMISSIONER OF POLICE